

## 26VECV02773 26VECV02773

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-08-24

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Case Number: 26VECV02773 Hearing Date: August 24, 2026 Dept: T

26VECV02773 Gomez v Horiguchi

[TENTATIVE] ORDER: Plaintiff Deysi Vizaino Gomez's Motion to Set Aside the Dismissal "with Prejudice" is GRANTED. The instant action is deemed to have been dismissed "without prejudice". The dismissal with the designation "with prejudice" entered on May 28, 2026, is stricken and the same dismissal is designated "without prejudice".

### Introduction

Plaintiff Deysi Vizaino Gomez (Plaintiff) moved to set aside the dismissal of the action entered on May 28, 2026. An opposition was due August 11, 2026, and none was filed.

### Discussion

Plaintiff provides that the request for dismissal "with prejudice" was filed by Counsel by mistake, inadvertence, surprise, or neglect and requests relief under the mandatory provision of the statute. (Code Civ. Proc., sec. 473(b).) Plaintiff's Counsel submitted their declaration showing their mistake in filing a request for dismissal "with prejudice". Counsel provided that the instant action should have been dismissed "without prejudice" so that it does not affect a subsequent duplicate action between the parties on the exact same matter. (See Gomez v. Horiguchi (Super. Ct. of L.A. County, pending, No. 26VECV02944; filed on May 19, 2026 (944 Case).) Counsel realized his mistake when he received the demurrer to the complaint in the 944 Case. Counsel's declaration sufficiently presented facts to show their mistake in dismissing the instant action "with prejudice". Because Counsel testified to their mistake, the relief requested is mandatory. The motion's argument is persuasive.

The motion to set aside the dismissal "with prejudice" is GRANTED.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.